

Court No. - 29

Case :- WRIT - C No. - 34405 of 2019

Petitioner :- Sunil Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bratendra Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

The petitioner is facing recovery of Rs. 2,80,534/- dated 22.5.2019 as electricity dues.

Counsel for the petitioner submits that the petitioner is ready and willing to pay the entire amount.

Sri Baleshwar Chadurvedi, learned counsel for the respondent informs that if the petitioner wants to pay and get installment fixed, he may approach the Executive Engineer concerned. Notwithstanding the fact that the Executive Engineer can fix installments in exercise of power in Clause 6.14 of the UP Electricity Supply Code, 2005. Since the matter has come up before us and the petitioner is ready to pay the dues in installments, we direct the petitioner to pay a sum of Rs. 80,534/- by 15.11.2019 and the balance amount of Rs. 2 lakhs in four equal installments of Rs. 50,000/- each payable in the month of December, 2019, January, February and March, 2020. The last installment would include all the interest that may accrue on the aforesaid outstanding amount during this period. In the event of default of payment in any of the installments, the petitioners would not be entitled to any further indulgence and the benefit of this order would come to an end automatically.

The writ petition is disposed off.

Order Date :- 24.10.2019

S.K.S.